

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B13: post-denial release route marker B13.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Mandate Release Order Following Stay Denial

Entered July 21, 2026

The mandate is released for issuance today. Officer Nolan Rusk moved on July 15 to stay the mandate pending a proposed petition for certiorari. The Court denied that motion on July 20 and, exercising its authority under Federal Rule of Appellate Procedure 41(b), expressly shortened the otherwise applicable post-denial interval to direct issuance on July 21.

The Clerk has verified that no later court order supersedes that direction and no stay remains effective. Today's release implements the schedule stated in the denial order. It is not based on an assumption that a denied motion leaves the original clock untouched; the panel's express shortening provides the legal basis for next-day issuance.

The mandate shall transmit the actual-route June 30 disposition: dismissal of Rusk's attempt to obtain appellate fact review and affirmance of the legal denial of qualified immunity on the supported facts assumed for Ellison. The district court may then resume proceedings on the remaining individual-capacity claim without treating the assumed account as an adjudicated version of events.

Release does not foreclose a certiorari petition or decide any application that may be presented elsewhere. It means only that this Court declined to retain control of the case and directed its judgment to take effect through mandate issuance.

Clerk's Findings

The certified judgment and opinion are unchanged from June 30. No rehearing petition was filed by July 14. The stay motion was served before the ordinary mandate date and remained pending until July 20; the panel then denied it and supplied a specific July 21 release command. Those events satisfy the prerequisites for this order.

The Clerk shall issue the certified materials electronically, record the issuance time, and notify counsel and the district clerk. The mandate becomes effective when released, not upon a later acknowledgment. No physical transfer of the native body-camera files is necessary because those materials remain in the district record under existing preservation arrangements.

The district court retains authority to manage trial preparation, evidentiary issues, and scheduling consistent with the appellate opinion. It may not revisit the appellate legal holding through a factual label, nor should it understand dismissal of the evidence target as resolving credibility. The unresolved strike-and-reach dispute remains for further proceedings if material.

No security is collected because the mandate stay was denied. Costs follow the June 30 judgment and ordinary clerk procedures. This document belongs exclusively to the denial route; it cannot be combined with a branch granting the same motion.

By direction of Chief Judge Alder and Judges Reed and March, the Clerk shall issue the mandate dated July 21, 2026.